City of
FRESNO
Amy K. Aller
City Clerk

FILED
AUG 07 2026
FRESNO COUNTY CLERK
By
DEPUTY

CLERK'S CERTIFICATION

I, Amy K. Aller, City Clerk of the City of Fresno, County of Fresno, State of California, do hereby certify the foregoing to be a full, true and correct copy of City Council Resolution No. 2026-179, adopted on July 30, 2026, now on file in my office.

IN, WITNESS WHEREOF, I have hereunto set my hand and affixed the Seal of the City of Fresno, California this 7th day of August 2026.

Amy K. Aller
City Clerk

By: _____
Bernard Canez, Assistant City Clerk

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CLERK
DEPUTY

RESOLUTION NO. 2026-179

A RESOLUTION OF THE COUNCIL OF THE CITY OF FRESNO, CALIFORNIA APPROVING THE FRESNO PUBLIC SAFETY, INFRASTRUCTURE RESTORATION, AND CITY GENERAL SERVICES TAX ORDINANCE, WITH THE USE OF TAX REVENUE TO BE REVIEWED AND REPORTED ON BY A CITIZENS OVERSIGHT COMMITTEE; ORDERING THE SUBMISSION OF THE MEASURE TO CITY VOTERS AT A SPECIAL MUNICIPAL ELECTION TO BE HELD ON NOVEMBER 3, 2026; REQUESTING THE COUNTY CONDUCT THE SPECIAL MUNICIPAL ELECTION; AND REQUESTING CONSOLIDATION WITH THE STATEWIDE ELECTION TO BE HELD ON THAT DATE

WHEREAS, the City of Fresno faces $1.2 billion in deferred maintenance on its local streets and roads; and

WHEREAS, the City of Fresno faces an additional $300 million in deferred maintenance on its sidewalks; and

WHEREAS, Measure C, or the Fresno County Transportation Improvement Act, is set to expire on June 30, 2027, with no identified renewal placed on the November 3, 2026, ballot; and

WHEREAS, Measure C has provided funding for the City of Fresno's transportation infrastructure, including road and sidewalk maintenance, public transportation, and airport development; and

WHEREAS, the City of Fresno's transportation infrastructure backlog will increase by $55 million annually following the expiration of Measure C without an alternative funding source; and

Date Adopted: 07/30/2026
Date Approved: 08/07/2026
Effective Date: 08/07/2026

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City Clerk's Office
Date 8/7/2026

WHEREAS, the expiration of Measure C will require reduction of transit operations, eliminating connections for Fresno residents to travel to access education, work, and medical providers; and

WHEREAS, Fresno faces new and on-going challenges from crime and homelessness, and increasing costs of providing basic services; and

WHEREAS, in accordance with applicable provisions of the California Constitution, California Government Code, and California Elections Code, the City Council desires to submit to the voters of the City of Fresno a ballot measure proposal to implement a one-half percent Sales and Use Tax in the City of Fresno, maintaining our current Sales and Use Tax rate of 8.35% (hereinafter the "Measure"); and

WHEREAS, if the Measure is approved by the voters, the Sales and Use Tax is a general tax, the revenue of which will be placed in the City's general fund and be used to pay for any general City services; and

WHEREAS, if the Measure is approved by the voters, the California Department of Tax and Fee Administration shall collect the tax from retailers subject to the tax and remit the funds to the City; and

WHEREAS, Section 10401 of the Elections Code authorizes the Fresno County Board of Supervisors to consolidate the special municipal election with the statewide general election scheduled for November 3, 2026; and

WHEREAS, the Sales and Use Tax required by the Measure cannot be imposed without voter approval.

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Fresno as follows:

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1. Pursuant to Article XIII C, Section 2(b) of the California Constitution, Section 53724 of the Government Code, and applicable provisions of the Elections Code, the City Council of the City of Fresno hereby calls and orders an election at which the Measure relating to the increase of the City's Sales and Use Tax shall be submitted to the qualified voters of the City.

2. The City Council requests the Fresno County Board of Supervisors to consolidate the special municipal election for this Measure with the statewide general election on November 3, 2026, pursuant to section 10403 of the Elections Code, and acknowledges that the consolidated election will be held and conducted in the manner prescribed in Elections Code section 10418.

3. The City requests that the Fresno County Clerk/Registrar of Voters conduct the election and canvass the returns, and the City agrees to pay the proportionate share of reasonable expenses of said election, said share to consist of all direct costs as determined by the Fresno County Clerk/ Registrar of Voters to be directly related to the conduct of the City of Fresno' special municipal election together with the City's proportionate share of the expenses for election services rendered by Fresno County that are being shared equally with other jurisdictions, if any, by virtue of the consolidation of the City's special municipal election with the elections being held by other jurisdictions, if any, in the City of Fresno on November 3, 2026.

4. At the statewide general election to be held on November 3, 2026, the following question shall be submitted to registered voters of the City of Fresno and shall be printed on the election ballot in the form set forth as follows:

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CITY OF FRESNO ROADS/PUBLIC SAFETY/CITY SERVICES MEASURE (NO TAX INCREASE): Without increasing current tax rates, shall the measure maintaining local streets, roads, sidewalks; improving police/fire staffing, 9-1-1 emergency response; maintaining transit services; accelerating airport improvements; other general services by establishing a 0.5¢ sales tax providing approximately $65,000,000 annually for 10 years or when a County transportation tax is adopted, whichever is sooner; with citizen oversight, all funds spent locally, be adopted?	YES NO

5. The following constitutes the synopsis of the Measure to be voted on for purposes of meeting the publication requirements of Elections Code Section 12111:

MEASURE TO BE VOTED UPON

Notice is hereby given that the following measure is to be voted on at the special municipal election to be held in the City of Fresno, on Tuesday, the 3rd of November 2026.

APPROVAL OF FRESNO PUBLIC SAFETY, INFRASTRUCTURE RESTORATION, AND CITY SERVICES TAX ORDINANCE

The proposed ordinance would impose a 0.5% [half-cent per dollar] sales and use tax within the City of Fresno for a period of 10 years or upon implementation of a County of Fresno transportation infrastructure tax, whichever occurs first. It is estimated to raise approximately $65 million annually while retaining City of Fresno's current tax rate. Proceeds would belong to the City of Fresno and could not be taken by, and would not be shared with, the State, County, or any other agency. As a general tax, revenues raised would be directed into the City's general fund and be available for any general City purpose, including but not limited to transportation infrastructure, repairing streets, roads and sidewalks, building safe routes to schools, providing public safety and assisting 9-1-1 emergency response, maintaining public transportation systems, local airports, and other general services provided by the City.

6. The full text of the ordinance submitted to the voters is attached as Exhibit A and by this reference incorporated herein. The full text of the Measure is not required to be printed in the Sample Ballot and Voters Pamphlet. However, the full text of the Measure shall be made available at the Office of the Fresno County Clerk/Registrar of Voters and the Office of the Fresno City Clerk.

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7. The measure shall be designated on the ballot by a letter, as provided in Elections Code Section 13116. This measure shall be designated by letter by the Fresno County Clerk/Registrar of Voters.

8. Passage of the Measure requires a simple majority of votes from qualified voters of the City voting in the election.

9. In all particulars not recited in this resolution, the election shall be held and conducted as provided by law for holding municipal elections.

10. The Ordinance to be enacted to implement the Measure, if the Measure is approved by the voters, will not be printed in the sample ballot and voter's pamphlet.

11. Arguments in favor or against the proposed measure are permissible and shall be filed with the Fresno County Clerk/Registrar in accordance with Elections Code Section 9281 or as provided for the consolidated election. Councilmembers voting in the majority for this resolution and the Mayor are authorized, but not required, to file arguments in favor of the proposed measure. They are also authorized to provide input to the Fresno County Clerk/Registrar in determining a letter designation for this Measure. Rebuttal arguments shall be permitted pursuant to applicable law.

12. Pursuant to Elections Code section 9280, the City Council hereby directs the City Clerk to transmit a copy of the Measure to the City Attorney, and the City Attorney shall prepare an impartial analysis of the Measure in accordance with Elections Code section 9280 and file it with the Fresno County Clerk/Registrar of Voters.

13. The City Clerk shall file a certified copy of this resolution with the Fresno County Clerk/Registrar of Voters as required by applicable law. The City Clerk is hereby authorized and directed to work with the Fresno County Clerk/Registrar of Voters and

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take all steps necessary to cause placement of the Measure and any associated arguments, analysis, synopsis, summary, or ballot question on the ballot.

14. The City Clerk and City Attorney are authorized to make any typographical, clerical, non-substantive corrections to this resolution and the Measure to be placed on the ballot as may be deemed necessary by the Fresno County Clerk/Registrar of Voters.

15. Severability. If any section, subsection, sentence, clause, phrase or portion of this Resolution or its application to any person or circumstance is for any reason held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Resolution or its application to other persons and circumstances. The City Council of the City of Fresno hereby declares that it would have adopted this Resolution and each section, subsection, sentence, clause, phrase, or portion thereof irrespective of the fact that any one or more sections, subsections, sentences, clauses, phrases, or portions be declared invalid or unconstitutional and, to that end, the provisions hereof are hereby declared to be severable.

16. This Resolution shall be effective immediately upon final adoption.

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Date 8/7/2026

* * * * * * * * * * * * * * *

STATE OF CALIFORNIA)
COUNTY OF FRESNO) ss.
CITY OF FRESNO)

I, AMY K. ALLER, City Clerk of the City of Fresno, certify that the foregoing ordinance was adopted by the Council of the City of Fresno, at a regular meeting held on the 30th day of July 2026.

AYES : Karbassi, Arias, Maxwell, Vang, Richardson, Esparza
NOES : Perea
ABSENT : None
ABSTAIN : None

Mayor Approval: August 7, 2026
Mayor Approval/No Return: N/A, 2026
Mayor Veto: N/A, 2026
Council Override Vote: N/A, 2026

AMY K. ALLER
City Clerk

By: _____ 8/7/26
Deputy Date

APPROVED AS TO FORM:
ANDREW JANZ
City Attorney

By: _____ 8/7/2026
Andrew Janz Date

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City Clerk's Office
Date 8/7/2026

July 31, 2026

Council Adoption: 07/30/2026
Mayor Approval:
Mayor Veto:
Override Request:

TO: MAYOR JERRY DYER

FROM: AMY K. ALLER
City Clerk

SUBJECT: TRANSMITTAL OF COUNCIL ACTION FOR APPROVAL OR VETO

At the City Council meeting of July 30, 2026, Council adopted the attached Resolution No. 2026-179 ***RESOLUTION - Approving the Fresno Public Safety, Infrastructure Restoration, and City General Services Tax Ordinance, with the use of Tax Revenue to be Reviewed and Reported on by a Citizens Oversight Committee; Ordering the Submission of the Measure to City Voters at a Special Municipal Election to be Held on November 3, 2026; Requesting the County Conduct the Special Municipal Election; and Requesting Consolidation with the Statewide Election to be held on that Date (Subject to Mayor's Veto) 2.-II-1 File ID 26-1028 by the following vote:

Ayes	: Karbassi, Arias, Maxwell, Vang, Richardson, Esparza
Noes	: Perea
Absent	: None
Abstain	: None

Correction: During approval of the agenda, City Clerk Aller announced the title has been updated to include ***BILL (for Introduction and Adoption) – Imposing a Transactions by the California Department of Tax and Fee Administration (Subject to Mayor's Veto)

And the correction was read for Section 7-1607. USE TAX RATE. There was an error in the language. The tax rate should read 0.50% (half percent) of the sales price of the property.

Please indicate either your formal approval or veto by completing the following sections and executing and dating your action. Please file the completed memo with the Clerk's office on or before August 10, 2026. In computing the ten day period required by Charter, the first day has been excluded and the tenth day has been included unless the 10th day is a Saturday, Sunday, or holiday, in which case it has also been excluded. Failure to file this memo with the Clerk's office within the required time limit shall constitute approval of the ordinance, resolution or action, and it shall take effect without the Mayor's signed approval.

APPROVED /NO RETURN: _____

VETOED for the following reasons: (Written objections are required by Charter; attach additional sheets if necessary.)

_____

_____

Date: 8/7/2026

Jerry Dyer, Mayor

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City Clerk's Office
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COUNCIL OVERRIDE ACTION: Date: _____

Ayes :
Noes :
Absent :
Abstain :

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